# Day1 Health

# Medical & Funeral Insurance Policy

FSP Number 11319
CMS Ref: DM1074

African Unity

FSP No.8447
CMS Ref: DM1053A

## VALUE PLUS HOSPITAL PLAN

Day1 Health (Pty) Ltd is an authorised Financial Services Provider (FSP 11319), underwritten by Africa Unity Life Limited, a licensed insurer and an authorised FSP 8447. The Day1 Health Plan is demarcated by CMS. This product is a Medical Insurance Product and not a Medical Aid registered by the Council for Medical Schemes DM1053A. For more information regarding this demarcated product please visit https://www.medicalschemes.co.za/insurers/.

# MEDICAL & FUNERAL INSURANCE POLICY

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# MEDICAL & DEATH INSURANCE POLICY

## 2. BACKGROUND

1.1 The Principal Member named in the Policy Schedule has applied to the Insurer for the insurance as hereinafter set out and the Insurer hereby agrees, subject:

1.1.1 to any proposal or other information supplied by or on behalf of the Insured Person:

1.1.1.1 disclosing all facts and circumstances known to the Insured Person that are material to the assessment of the risks insured hereby, and

1.1.1.2 forming the basis of this Policy, and

1.1.2 to the condition of prior payment of the Premium by or on behalf of the Insured Person and the receipt thereof by or on behalf of the Insurer notwithstanding anything to the contrary set out in this Policy or any section thereof,

to grant such insurance subject to the terms, conditions, provisions and exceptions hereinafter set out or as contained in any endorsement that may be issued in regard thereto.

1.2 This Policy is conditional upon and will only come into effect following payment of the Premium by the Insured Person and the receipt thereof by or on behalf of the Insurer.

## 3. DEFINITIONS

3.38 In this Policy, unless the context indicates a contrary intention, the following words and expressions bear the meanings assigned to them and cognate expressions bear corresponding meanings -

3.39 "**Accident or Accidental**" means a sudden unforeseen, unexpected, unusual, specific event, which is unintended, arises from a source external to the Insured, is independent of illness, disease or other bodily malfunction, which occurs at an identifiable time and place during the period of the Policy;

3.40 "**Admission**" means admission into a Hospital as an Inpatient, for a period of at least 24 (twenty-four) hours, on the advice or and under the professional care and attendance of a qualified physician;

2.4 **"AFRICA ASSIST"** means the emergency medical response unit available to the Insured Persons for emergency medical assistance;

2.5 "**Application Form**" The form that the Principal Insured completes and nominates the Dependants (where applicable) to be insured under this Policy.

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| 3.6 | **"ASISA"** | means the Association for Savings and Investments South Africa**;** |
| 2.7 | "**Beneficiary**" | The person/s as nominated by the Principal Insured, to receive the Funeral Benefit, subject to the terms and conditions set out in this Policy and in the Policy Schedule. |
| 2.8 | "**Benefit**" | means the Benefit set out in the Policy Schedule, provided by the Insurer in terms of this Policy; |
| 3.9 | **"Bodily Injury"** | means Bodily Injury by violent external and visible means caused by an Accident, but shall include Bodily Injury caused by starvation, thirst and exposure to the elements as a result of a Road Accident; |
| 2.10 | **"Casualty Illness"** | means in the event an Insured Person requires medical attention for an illness, condition or sickness (non-accident related) and is immediately admitted as an inpatient, into hospital, from the casualty unit for 24 (twenty-four) hours or longer. |
| 2.11 | "**Commencement Date**" | means the date specified in the Policy Schedule; |
| 3.12 | **"Compensation"** | means the amount payable directly to the Service Provider or the Insured Person's estate, depending on the type of benefit claimed in terms of clause 7 and/or 8 hereof; |
| 3.13 | "**Day**" | means 24 (twenty-four) consecutive hours from time of Admission into Hospital to the time of Discharge from Hospital (as stated on the Hospital account); |
| 3.14 | **"Day Procedure"** | A surgical procedure and/or Hospital Admission that is considered to be less than 24 (twenty-four) hours in Hospital by a qualified physician; |
| 3.15 | **"Dependant Child(ren)"** | means: |
| 3.15.1 | | a child of a Principal Member under the age of 21 (twenty-one) years, including a stepchild, an illegitimate child or legally adopted child, including a child adopted in terms of a customary adoption under a tradition practised by the people of Southern Africa provided that the child's natural parents are both deceased, or an adoption under the tenets of any religion |

practised by the people of Southern Africa provided that the child's natural parents are both deceased;

3.15.2 a stillborn child of a Principal Member born after the 28th (twenty-eighth) week of pregnancy or posthumous child;

3.15.3 a child of a Principal Member being permanently mentally or physically disabled and totally dependent upon the Principal Member;

3.15.4 a child of a Principal Member under the age of 26 (twenty-six) years who is a full time student at any registered university, Technicon or tertiary education institution, registered in terms of any legislation in the Republic of South Africa or such other institution as may be approved in Writing by African Unity Life Limited, and who is unmarried;

2.16 "**Emergency**" The sudden and, at the time, unexpected onset of a health condition, **due to an Accident-related incident**, that requires immediate medical or surgical treatment;

2.17 **"Family"** means the Principal Member (being a natural person) in whose name this policy is effected and includes the Principal Member's Spouse and Dependant Children under the age of 21 (twenty-one) years which form part of the Principal Member's household and who are resident in the Republic of South Africa**;**

3.18 **"Hospital"** means an establishment which meets all the following requirements:

3.18.1 holds a licence as a hospital or day clinic or nursing home (if licensing is required in the province or government jurisdiction);

3.18.2 operates primarily for the reception, care and treatment of sick, ailing or injured persons as inpatients;

3.18.3 provides organised facilities for diagnosis and surgical treatment;

3.18.4 is not primarily a rest or convalescent home or similar establishment and is not, other than incidentally, a place for alcoholics or drug addicts;

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| 2.19 | **"Illness"** | means the onset of any acute somatic, unforeseeable, unpredictable Illness (excluding mental Illness) which requires Admission to Hospital, for no less than 24 (twenty-four) hours, and which was not a Pre-Existing Condition (unless otherwise provided for herein). A recurrence of any Illness will only be considered a separate Illness if 6 (six) months have elapsed from the date of onset of the preceding Illness; |
| 2.20 | **“Inception Date”** | means the date specified in the Policy Schedule |
| 2.21 | “**Injury**” | A sudden and unexpected bodily injury necessitating Primary Health Benefits, Emergency Benefits and/or Hospital Confinement Benefits; |
| 2.22 | “**Insured Persons**” | means the Principal Member as named on the Policy Schedule and their named Spouse and Dependant Children and Domestic Employee (where applicable); |
| 2.23 | **"Insurer"** | means African Unity Life Limited, registration number 2003/016142/06, a licensed life insurer in terms of the Long-Term Insurance Act of 1998 and an authorised financial services provider(FSP 8447) in terms of the Financial Advisory and Intermediary Services Act of 2002, having its registered address at 3 Herholdt Street, Stellenbosch, 7600. |
| 2.24 | "**Insuring Section**" | means the benefit payable directly to the Service Provider or the Insured Person’s estate, depending on the type of benefit claimed in terms of clause 7 and/or 8 hereof; |
| 3.25 | **"Policy Schedule"** | means the Long-Term insurance policy schedule issued to the Principal Member in terms of section 48 of the Long-Term Insurance Act; |
| 2.26 | “**Pre-Authorisation Services**” | a telephonic call-centre service in terms of which the Insurer or its subcontractor assists with the pre-authorisation for treatment of a Member in terms of this Policy; |
| 2.27 | **“Pre-Existing Condition"** | means any Bodily Injury or Illness for which the Insured Person received medical advice, treatment, or whereby diagnosis or consultation has been provided in the 12 (twelve) months prior to |

the Inception Date stated in the Policy Schedule (unless otherwise provided for herein);

3.28 **"Premium"** means the premium payable to the Insurer on a monthly basis in terms of this Policy in order to secure the Benefits;

2.29 **"Principal Member"** means the person who applies for Insurance Cover under this Policy;

2.30 **"Professional Sport"** means a sporting activity in which an Insured Person engages and from which such Insured Person derives the majority of their monthly income;

2.31 **"Spouse"** means the named Spouse of a Principal Member. Not more than one Spouse shall be covered in respect of each Principal Member;

3.32 **"Temporary Total Disability"** means the Insured Person being admitted to Hospital as an inpatient for no less than 24 (twenty-four) hours, from time of Hospital Admission to time of Hospital Discharge (as stated on the Hospital account);

2.33 "**Territorial Limits**" means the Republic of South Africa, Namibia, Lesotho, Botswana, Swaziland, Zimbabwe and Mozambique;

2.34 **"the / this Policy"** means this insurance agreement concluded between the Insurer and the Principal Member in respect of the Benefits underwritten by the Insurer; and

2.35 "**Waiting Period**" The Waiting Period is the period subsequent to the Inception Date of the Policy, in which no Benefits will be paid;

| **POLICY SECTION** | **WAITING PERIOD** |
|---|---|
| Temporary Total Disability (Illness), including medical advice, treatment, consultation and diagnosis (including Casualty Cover) | 3 (three) calendar months from Inception Date of Policy |
| Accident Benefit (Excludes Sports Injuries) | 1 (one) calendar month from Inception Date of Policy |
| Pre-Existing Conditions | 12 (twelve) calendar months from Inception Date of Policy |
| Funeral Benefit | 3 (three) calendar months from Inception Date of Policy for natural or unnatural causes (non- |

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|---|---|
| | accident related), no waiting period for accidental deaths and 12 (twelve) calendar months for suicide-related deaths. |
| Hysterectomy procedure | 3 (three) calendar months waiting period from Inception Date of Policy |
| Appendectomy procedure | 3 (three) calendar months waiting period from Inception Date of Policy |

2.36 **"Writing"** (or words of similar meaning) means legible writing and in English and excludes any form of electronic communication contemplated in the Electronic Communications and Transactions Act, 25 of 2002.

3.37 Any reference to the singular includes the plural and vice versa; and

3.38 any reference to a gender includes the other gender.

3.39 The clause headings in this Policy have been inserted for convenience only and shall not be taken into account in its interpretation.

3.40 If any provision in a definition is a substantive provision conferring rights or imposing obligations on any party, effect shall be given to it as if it were a substantive clause in the body of the Policy, notwithstanding that it is only contained in the interpretation clause.

3.41 This Policy shall be governed by, construed and interpreted in accordance with the law of the Republic of South Africa.

## 4. GENERAL PROVISIONS

It is declared and agreed that:

4.38 once any Insured Person has been Insured under this Policy for a period of 12 (twelve) consecutive months any Pre-Existing Condition shall no longer apply (upon review and agreement by the Insurer);

4.39 the age of the Principal Member cannot exceed 55 years when first acceding to this Policy (unless otherwise provided for herein);

4.40 an Insured Person may not be covered for more than one Policy under this Insurance;

## 5. PAYMENT OF PREMIUM

5.38 Premiums shall be payable monthly in advance on the first day of the month. In the event of non-payment of the Premium on the due date, and subject to the provision of a 15 (fifteen) day grace

period to pay the Premium in arrears, insurance cover in respect of the Insured Person shall lapse after notification of the non-payment to the Principal Member by the Insurer.

5.39 Premiums shall be payable by means of a debit order from a bank account nominated by the Principal Member. All costs associated in respect thereof shall be borne by the Principal Member.

## 6. GENERAL EXCLUSIONS AND LIMITATIONS

The Insurer shall not be liable to pay Compensation for Bodily Injury or Illness in respect of any Insured Person:

6.38 caused by suicide, or self-injury or intentional exposure to obvious risk of Injury (unless in an attempt to save human life);

6.39 caused by a Pre-Existing Condition (unless otherwise provided for herein);

6.40 over 70 years of age (unless otherwise provided herein);

6.41 caused by or as a result of the influence of alcohol, drugs or narcotics upon such Insured Person unless administered by or prescribed by and taken in accordance with the instructions of a member of the medical profession (other than himself);

6.42 caused by or arising from exposure to or contamination by atomic energy and/or nuclear fission or reaction;

6.43 whilst travelling by air other than as a passenger and not as a member of the crew nor for the purpose of any trade or technical operation thereon or therein;

6.44 whilst participating in any labour disturbances, riot, strike, lock-out or civil commotion or public disorder or active involvement in war, acts of terrorism, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or political risk of any kind;

6.45 whilst participating in a sport, professional or otherwise as all sports injuries are excluded;

6.46 for any mental illness, mental disability, mental impairment and psychopathic disorders, all forms of depression, major affective disorders, psychotic and neurotic disorders, as well as stress and anxiety related disorders and/or nervous disorders, other than those caused by Accident as defined in this Insurance;

6.47 who is in employment or service in the permanent force of the South African National Defence Force, South African Police Service or any other armed forces;

6.48 for any claims for mountaineering or rock climbing necessitating the use of ropes or guides, potholing, hang gliding, sky diving, riding or driving in a race or rally, quad biking, off-road

motorcycling, kick-boxing or other body contact sports, underwater activities involving the use of artificial breathing apparatus unless the Insured Person has an open water diving certificate or is diving with a qualified instructor to a depth no greater than 30 metres and/or similar activities, unless agreed by Insurer;

6.49 for any claim arising whilst the Insured Person is perpetrating an intentional unlawful act in terms of South African Law;

6.50 caused by any gradually operating cause of which the Insured Person is aware.

6.51 for pregnancy or childbirth, whether by caesarean or natural delivery, as all maternity benefits are excluded;

6.52 for claims in respect of expenses arising out of regular medical treatments on an ongoing basis;

6.53 for obesity, elective, elective cosmetic or plastic, corrective optical and laser surgery or treatment and costs resulting therefrom;

6.54 for treatment, directly or indirectly arising from, or connected with male and female birth control, infertility and any form of assisted reproduction;

6.55 for any new-born children where the Illness was known by the Principal Insured Person prior to the birth of that Dependant Child;

6.56 the Insured Persons shall take all reasonable precautions to prevent Accidents, including Domestic Violence and to comply with all statutory requirements and regulations;

6.57 if the consequences of an Accident shall be aggravated by any condition or physical disability of the Insured Person which existed before the Accident occurred, the amount of any compensation payable under this Insurance in respect of the consequences of the Accident shall be the amount which it is reasonably considered would have been payable if such consequences had not been so aggravated.

6.58 if at the time of any Insured Event giving rise to a Medical Expenses claim under this Policy, a Health Insurance and/or Medical Aid Scheme policy exists with any other Insurer and/or Medical Aid Scheme authorising and covering the Insured Person against the defined events, the Insurer will require the payment certificate from the Health Insurance and/or Medical Aid Scheme policy of the payments made in respect of such Insured Event whereafter any financial shortfalls that are not covered by the other Insurer and/or Medical Aid Scheme will be assessed and, where applicable, paid directly to the Service Provider by the Insurer, subject to the terms and conditions of clause 7 hereof.

6.59 whereby medical advice, treatment, diagnosis or consultation has taken place within the waiting period as specified in the Policy. The waiting periods apply to the Illness Stated Benefit and Funeral Benefit.

6.60 whereby the Insured Person unreasonably or wilfully neglects or fails to seek and remain under the care of a medical practitioner.

6.61 Whereby the Insured Person refuses medical treatment recommended by a physician or medical practitioner.

6.62 resulting from, whilst in Hospital for the investigation of pain and pain related conditions and treatment in this context, which includes bed rest, traction, physiotherapy, spinal blocks, medication or intravenous medication.

6.63 for any bodily injury whilst performing duties that are related to the Insured Persons place of work.

5.27 disease, epidemic or pandemic.

## 7. GENERAL CONDITIONS

7.38 Insurance cover shall commence on the Inception Date subject to receipt of the first Premium by the Insurer.

7.39 This Policy and the Policy Schedule shall be read together as one contract and any word or expression to which a specific meaning has been attached in any part of this Policy or the Policy Schedule shall bear specific meaning wherever it may appear.

7.40 This Policy may be amended or cancelled at any time by the Insurer giving 30 (thirty) days' notice in writing (or such other period as may be mutually agreed).

7.41 This Policy is not assignable. Compensation shall, depending on the type of benefit claimed, be payable directly to the Service Provider or the Insured Person's estate (subject to the terms and conditions of clause 7 hereof) whose receipt thereof shall effectively discharge the Insurer.

7.42 This Policy shall be voidable in the event of misrepresentation, mis-description or non-disclosure by or on behalf of an Insured Person of any particular material fact to this Insurance.

7.43 Notice must be given to the Insurer in writing as soon as practicable of any occurrence which may give rise to a claim under this Insurance, but in any event within 3 (three) months of such occurrence, failing which the claim will not be entertained.

7.44 In the event that the Insurer repudiates liability for any claim under the Policy, the claimant shall have 90 (ninety) days from the date of notice of the repudiation within which to make representations to the Insurer disputing the repudiation of the claim. If the claimant concerned does not, in respect of the subject matter of such claim, within 3 (three) years, after the 90 (ninety)

day period to make representations, commence legal proceedings in a competent court and prosecute such proceedings to final judgment, any liability of the Insurer shall be extinguished and no benefits shall be payable in respect of such claim and/or the insured event concerned.

7.45 If any amount payable in terms of this Policy is not claimed in accordance with the provisions of this Policy within 3 (three) years from the date on which it became due for payment, all rights and claims in respect thereof shall prescribe and no further claim whatsoever shall be valid against the Insurer pursuant to this Policy.

7.46 All certificates, information and evidence required by the Insurer shall be furnished in the form prescribed and without expense to the Insurer. The Insured Person shall submit to medical examination on behalf of and at the expense of the Insurer as often as shall be required in connection with any claim.

7.47 Qualified medical advice shall be sought and followed promptly on the occurrence of any Bodily Injury or Illness and the Insurer shall not be liable for any part of any claim which in the opinion of the medical adviser arises from the unreasonable or wilful neglect or failure of an Insured Person to seek and remain under the care of a qualified member of the medical profession.

7.48 The Insured Person must notify AFRICA ASSIST at least 48 (forty-eight) hours prior to being hospitalised and give full particulars of the hospitalisation to AFRICA ASSIST at the contact number as provided on the membership card. Failure to do so will result in the non-payment of claims. Where it is not possible to notify AFRICA ASSIST prior to Hospitalisation due to an emergency this condition will not apply, subject to notification to AFRICA ASSIST within 48 hours after Admission provided that the Insured Person is physically able to do so.

7.49 If any claim under this Insurance be in any respect fraudulent or intentionally exaggerated or if any fraudulent means or devices are used by Insured Person or anyone acting on his behalf to obtain any benefit under this Insurance all benefit hereunder shall be forfeited and no Premiums shall be refunded.

7.50 It is a condition precedent to Insurer's liability to pay Benefits on behalf of an Insured Person that all medical records, notes and correspondence referring to the subject of a claim or a related Pre-Existing Condition shall be made available to any medical or other advisor appointed by Insurer and such advisor or advisors shall, for the purpose of reviewing the claim, be allowed so often as may be deemed necessary to make examination of the Insured Person or any other record pertaining to the claim. The conditions listed are:

7.50.1 Kaposi's Sarcoma;

7.50.2 Pneumocystis carinii;

7.50.3 Tuberculosis;

7.50.4 CMV;

7.50.5 Cryptococcal meningitis;

7.50.6 Cryptosporidium;

7.50.7 Disseminated Herpes/Shingles.

## 8. INSURING SECTION

The following Insurance Cover and Benefits shall be available to the Insured Persons and payable directly to the Service Provider as follows:

| **BENEFITS** | **AMOUNT PAYABLE** |
|---|---|
| 1st Day in Hospital (subject to 3 (three) calendar months waiting period unless by specific agreement) | R10 000 |
| 2nd Day in Hospital, payable in blocks of R2500 for every 6 (six) hours and subject to 3 (three) calendar months waiting period (unless by specific agreement) | R10 000 |
| 3rd Day in Hospital payable in blocks of R2500 for every 6 (six) hours and subject to 3 (three) calendar months waiting period (unless by specific agreement) | R10 000 |
| Every subsequent day thereafter | R1 500 |
| Maximum Benefit payable for a 21 Day period | R57 000 |
| Hysterectomy procedure limited to a maximum amount payable of up to and subject to 3 (three) calendar months waiting period (unless by specific agreement) | R20 000 |
| Appendectomy procedure limited to a maximum amount payable of up to and subject to 3 (three) calendar months waiting period (unless by specific agreement) | R20 000 |
| Casualty Illness upon the insured person being admitted as an in-patient in hospital, directly from the casualty unit, for 24 hours or longer and is subject to a 3 (three) calender months waiting period unless by specific agreement | R2 000 per Insured Person, per event |

| | |
|---|---|
| Accident Benefit is subject to a 1 (one) calendar month waiting period unless by specific agreement. | R150 000 per Insured Person, per accident and R300 000 per Family per accident |
| Funeral Benefit subject to 3 (three) calendar months waiting period unless by specific agreement for natural or unnatural causes (non-accident related), no waiting period for accidental deaths and 12 (twelve) calendar months for suicide-related deaths. | Principal Member R20,000<br>Spouse & Child > 14 years R10,000<br>Child > 6 years R5,000<br>Child > 0 years > R2,500<br>Stillborn > 28 weeks R1,250<br>(Benefit only available to Plan members.) |

8.38 **Temporary Total Disability (Illness) in Hospital Cover**

8.38.1 The Insurance Cover afforded any Insured Person for Temporary Total Disability will only come into effect 3 (three) calendar months after the Inception Date of the Policy.

8.38.2 If during the period of the Policy any Insured Person, within the Territorial Limits, sustains an Illness which first manifests itself after 3 (three) calendar months from the Inception Date stated in the Policy Schedule which directly and independently of all other causes results within fourteen days of the onset of such Illness, as defined, in Hospitalisation, the Insurer agrees to pay the Service Provider directly the Compensation stated in the Insuring Section.

8.38.3 The Compensation specified for Temporary Total Disability shall cease as soon as the Insured Person has been discharged from Hospital.

8.39 **Accident Stated Benefit**

For an Accident, the compensation shall be limited to an amount of R150 000 per Insured Person per Accident and R300 000 per Family per Accident and payable by the Insurer directly to the Service Provider. Insurance Cover afforded any Insured person in terms of the Accident benefit will only come into effect 1 (one) calendar month after the Inception Date stated in the Policy Schedule.

Physiotherapy, as a result of an Accident, is limited to 7 (seven) sessions per event.

## 9. FUNERAL BENEFIT

8.1 Insurance Cover afforded any Insured person in terms of the Funeral Benefit will only come into effect 3 (three) calendar months after the Inception Date stated in the Policy Schedule for natural

or unnatural causes (non-accident related), no waiting period for accidental deaths and 12 (twelve) calendar months for suicide-related deaths.

8.2 Repatriation Benefits are excluded from the Funeral Benefit.

8.3 The following Insurance Cover and Benefits shall be available to the Insured Person's estate as follows:

| **Insured Persons Covered (Natural or Accidental cause)** | **Amount Payable** |
|---|---|
| Principal Member<br>Spouse & Child > 14 years<br>Child > 6 years<br>Child > 0 years<br>Stillborn > 28 weeks<br>(Benefit only available to Plan members.) | R20,000<br>R10,000<br>R5,000<br>R2,500<br>R1,250 |

## 10. DISPUTE RESOLUTION

10.38 Should any dispute, disagreement or claim arise between the parties concerning this Policy ("**the Dispute**"), the parties shall endeavour to resolve the Dispute referring the Dispute to the Arbitration Foundation of Southern Africa ("**AFSA**") for final resolution by way of arbitration in accordance with the rules of AFSA by an arbitrator or arbitrators appointed by AFSA.

10.39 Unless otherwise agreed in writing by the parties, any such arbitration shall be held in Johannesburg.

10.40 Each Party to this Policy irrevocably:

10.40.1 consents to any arbitration in terms of the aforesaid rules being conducted as a matter of urgency; and

10.40.2 authorises the others to apply, on behalf of the parties to such Dispute, in writing to the secretariat of AFSA in terms of the aforesaid rules for any such arbitration to be conducted as a matter of urgency, provided that the party which intends so applying first notifies the other parties in writing of its intention to do so.

10.41 The provisions of this clause 9 shall not preclude a party from seeking urgent interim relief from the appropriate court of law.

10.42 For the purposes of clause 9 and for the purposes of having any award made by the arbitrator(s) being made an order of court, each of the parties hereby submits itself to the South Gauteng High Court of South Africa or its successor in title.

10.43 This clause 9 constitutes an irrevocable consent by each of the parties to any proceedings in terms hereof, is severable from the rest of the Policy and shall, notwithstanding the termination of this Policy, remain in full force and effect.

## 11. NEW LAWS

If, at any time after the Inception Date, any legislation, rulings or regulations (including any taxation laws) applying to this Policy, comes into operation, the Insurer shall be entitled on a 3 (three) months prior written notice to the Principal Member, to change, amend or alter any terms or conditions of this Policy in order to comply with such legislation, rulings or regulations (including any tax laws) or otherwise to be placed in the same position it would have been was it not for the legislation, rulings or regulations becoming applicable.

## 12. DOMICILIUM

12.38 The *domicilium citandi et executandi* address of a Principal Member shall be the address set out in the application form or such later address as notified in writing.

12.39 For purposes of this Policy, the Insurer's addresses shall be 3 Herholdt Street, Stellenbosch, 7600; 086 123 4555 (telephone), 086 123 4556 (facsimile), for the attention of the Company Secretary.

12.40 Any notice given in terms of this Policy shall be in writing and shall-

12.40.1 if delivered by hand be deemed to have been duly received by the addressee on the date of delivery;

12.40.2 if posted by prepaid registered post be deemed to have been received by the addressee on the 8th (eighth) day following the date of such posting;

12.40.3 if transmitted by facsimile be deemed to have been received by the addressee on the day following the date of dispatch, unless the contrary is proven.

12.41 Notwithstanding anything to the contrary contained or implied in the Policy, a written notice or communication actually received by the Insurer or a member from the other as the case may be, including by way of facsimile transmission shall be adequate written notice or communication to such party.

## 13. GENERAL

13.38 This Policy constitutes the entire insurance policy and that no other conditions, stipulations, warranties and representations whatsoever, have been made by any party or that party's agent, other than as specifically included herein.

13.39 No latitude, extension of time or other indulgence which may be given or allowed by either party to the other in respect of any payment provided for in the Policy or the performance of any other obligation shall under any circumstances be construed to be an implied consent by such party or operate as a waiver or a novation of or otherwise affect any of the third party's rights in terms of or arising from the Policy, or prevent such party from importing, at any time and without notice, strict and punctual compliance with each and every provision or term hereof.

13.40 No amendment or cancellation of the Policy shall be of any force and effect unless such amendment or cancellation is in writing and signed by the Insurer.

13.41 This Policy does not accumulate cash or surrender value and may not be converted into a paid up policy. The Insurer specifically determines that no loans will be allowed in terms of the Policy.

13.42 Statements made by the Insured Person relating to the Policy will be deemed to be true and incontestable.

13.43 The parties consent to the jurisdiction of the South Gauteng Division of the High Court of South Africa, to hear and determine any action or proceeding which may result from or arise from the Policy.

12.7 This Policy is not a Hospital Cash Back Policy and as such all medical expenses are payable directly to the Service Provider upon an authorised Insured Event taking place and subject to the terms and conditions of clause 7 hereof.

## PLEASE READ CAREFULLY

## IMPORTANT INFORMATION FOR ALL OUR CLIENTS
## STATUTORY NOTICE AND OTHER LEGAL REQUIREMENTS

As a financial services provider, Day1 Health (Pty) Ltd is committed both under legislation and in terms of our own ethical code, to providing you, our client, with all the information you need to ensure that you are in possession of all relevant facts about the various parties supplying you with your insurance product. These facts are set out for you below, as required by the Financial Advisory and Intermediary Services Act (FAIS) and for clients who purchase policies in their personal capacity, the Policyholder Protection Rules. Whilst this information is important it does not form part of your actual policy wording.
Not only should you be in possession of the facts set out below, but you should have been provided with a full understanding of the insurance product you have purchased or are considering purchasing. All representatives must be authorised by Day1 Health (Pty) Ltd to provide you with financial services and you are entitled to request proof of this authorisation.
If, at any time, you need more information about the product or you would like us to explain aspects to you again, please ask.

| STATUTORY NOTICE | INFORMATION |
|---|---|
| **1. ABOUT YOUR FINANCIAL SERVICES PROVIDER** | |
| (a) Name, address, contact details of your financial service provider | Company Name: Day1 Health (Pty) Ltd<br>Registration number: 2000/027792/07<br>Postal address: P.O. Box 782622, Sandton City, Johannesburg, 2146<br>Physical address: Exeter House, Peter Place Office Park, 54 Peter Place, Bryanston, Johannesburg, 2021<br>Fax number: 086 690 4818<br>Tel Number: 087 610 0600<br>Email address: admin@day1.co.za<br>Website: www.day1health.co.za |
| (b) Legal status of your financial services provider | Day1 Health (Pty) Ltd is a financial services provider with FSP number 11319. We are licensed to provide advice and intermediary services in respect of Long-Term Categories A, B1, B1-A, B2 and B2-A; and Short-Term Insurance Personal Lines. We accept responsibility for all financial advice provided by our representatives. |
| (c) Whether services are rendered under supervision | We have representatives under supervision who disclose their status when providing financial services. |
| (d) Whether professional indemnity insurance, fidelity guarantee insurance and premium guarantees is held | We have the required Professional Indemnity Insurance in place which provides protection to our clients.<br>Fidelity Guarantee: We are not required to hold such a guarantee. |
| (e) Details of financial service provider's complaints procedure | If you have a complaint about Day1 Health (Pty) Ltd.'s service, staff or products sold to you please contact the following person in writing with full details of the problem you have encountered.<br>Name: Karen Lotriet<br>E-mail: complaints@day1.co.za<br><br>We have a complaints policy in place, which can be provided on request and is available from our office.<br><br>If you are dissatisfied with the outcome of your complaint, you can contact the Long-term Insurance Ombudsman and/or the FAIS Ombud who are available to assist you in the event of complaints that are not satisfactorily resolved by the financial services provider and/or Insurer. |
| (f) Details of financial service provider's compliance arrangements | Associated Compliance (Pty) Ltd is Day1 Health (Pty) Ltd.'s compliance officer. Their practice number is 6377 and their contact details are:<br>Telephone – 011 678 2533 or info@associatedcompliance.co.za |
| (g) Fees, commissions etc. payable & premium payment conditions | The Commissions payable are detailed in your schedule of insurances. Premiums are payable in terms of the payment terms reflected in the policy document to QSURE (Pty) Ltd (FSP No. 50552), an authorised collection agent of the insurer. The consequences of non-payment of the premium will be that cover will be cancelled. |
| (h) Details of financial service provider's role and mandates in place | Day1 Health (Pty) Ltd has a standard agency agreement to represent the insurer, African Unity Life Limited. |

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| (i) How do we get paid for what we do? | Our agency agreement allows us to market, sell, maintain, and service policies.<br><br>We have an additional written agreement, referred to as a Binder agreement, with the insurer to conduct the following services on their behalf;<br>i) enter into, vary or renew a policy;<br>ii) determine the premium under a policy;<br>iii) determine the wording of a policy;<br>iv) settle claims under a policy.<br><br>In terms of our standard agency agreement, we receive a commission from the insurer which is no greater than the maximum legislated commission amount/s.<br><br>In terms of our Binder agreement, we receive a fee from the insurer as follows: 9% of the gross premium of your policy. |

| STATUTORY NOTICE | INFORMATION |
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| **2. ABOUT THE UNDERWRITER / INSURER** | |
| (a) Name, address, contact details of product supplier | Insurer Name: African Unity Life Limited<br>Company Registration No. 2003/016142/06,<br>A licensed long-term insurer and an authorised Financial Services Provider, FSP No. 8447<br>Address: 3 Herholdt Street,<br>Stellenbosch, 7600<br>Fax number: 086 123 4556 |
| (b) Contact name for complaints | Tel Number: 086 123 4555<br>Mr. Johan Ferreira complaints@africanunity.co.za |
| (c) Details of the compliance department | Contact details of our Compliance Department are:<br>Email: compliance@africanunity.co.za<br>Telephone: 086 123 4555 |

**3. OTHER MATTERS OF IMPORTANCE**

- You must be informed of any material changes to the information referred to in paragraphs 1 and 2 above.
- If any complaint to the broker or insurer is not resolved to your satisfaction, you may submit your complaint to the relevant Ombudsman.
- Polygraph or similar tests are not obligatory and claims may not be rejected solely on the basis of a failure of such a test.
- If your premium is paid by debit order, the debit order must be in favour of one person and may not be transferred without your approval.
- If the premium is paid by debit order, it may only be in favour of one person and may not be transferred without your approval; the Insurer must inform you at least 30 days before the cancellation thereof, in writing, of its intention to cancel such debit order.
- The Product Supplier (insurer) and not the broker must give reasons in writing for the rejection of any claim submitted by you.
- The Product Supplier (insurer) must give you written notice of its intention to cancel your policy.
- If any of the information you gave us changes you must advise us without delay.
- It remains your responsibility to accurately and properly disclose all material facts, and answer all questions honestly and completely.
- You are entitled to a copy of your policy free of charge.

**What else should you know?**
We undertake:-

- To keep all information you tell us about yourself confidential.
- Not to alter any documents you provide us with when submitting to any insurer. Where we feel an error has been made we will advise you prior to Submission.
- To never ask you to sign blank documents – wherever possible all documents, be they proposals or claim forms should be completed by you to ensure full detail.
- Never to take away any rights you have in terms of any legislation that governs the way we transact business.
- To supply a copy of any documents used in the preparation of your insurances, when required, free of charge.

**3.A CONFLICT OF INTEREST**

Key Conflict of Interest Disclosures relating to Day1 Health (Pty) Ltd.

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| Do we have a shareholding in any insurer? | No |
| Do we receive more than 30% of their income from any insurer? | Yes, we earn more than 30% of our fees and commission income from African Unity Life Limited |
| Do we have a relationship with any insurer that provides a financial interest other than ownership? | No |
| Do we have a relationship with any other broker that provides an ownership or financial interest? | No |
| Do we have a relationship with any distribution channel that provides an ownership, financial interest or support service? | Yes, 1Doctor Health (Pty) Ltd |
| Do we have a relationship with any other person that provides an ownership or financial interest? | No |

Any combination of these relationships and/or ownership or financial interests may present a potential conflict and as such we need to ensure you are aware of these.

Immaterial Financial Interest:

It is generally accepted practice within our Industry that "entertainment" and "gifts and incentives" collectively referred to as an immaterial financial interest in the Conflict of Interest regulations, are often provided by the product supplier to the Financial Services Provider (broker) and vice versa and potentially from and to other financial services providers. The Rand value of such interests are limited, by legislation, per calendar year, to R1,000 in respect of any one individual be they the provider of or beneficiary of such immaterial financial interest. Such limitations are dealt with and managed by our management policy.

We have a comprehensive Conflict of Interest Management Policy in place. A copy of this policy can be made available on request from our office.

**4. DETAILS OF HOW TO INSTITUTE A HOSPITAL AND/OR FUNERAL CLAIM:**

Notify Day1 Health (Pty) Ltd.'s Claims Department first by telephone 0876 100 600 during office hours and then follow up in writing.

1. You must notify Day1 Health (Pty) Ltd of the incident being claimed against as stipulated in the policy document.
2. You must complete the relevant claim form, attach all documentation thereto and send the claim form to email address: claimshospital@day1.co.za or per fax to 086 551 6456.
3. Please keep the following in mind:
   - Any medical accounts submitted after 120 days (4 months) after date of service will be rejected as stale.
   - All hospital claims are processed as per the Terms and Conditions of your policy wording.
   - All funeral claims must be submitted within 90 days (3 months) of death and are processed as per the Terms and Conditions of your policy wording.

**5. WARNING**

- Do not sign any blank or partially completed application form
- Complete all forms in ink.
- Keep all documents handed to you.
- Make notes as to what is said to you.
- Ask for a letter of representation from your adviser.
- Do not be pressurised into buying the product.
- Failure to provide correct or full relevant information may influence an insurer on any claims arising from your contract of insurance.

**6. PARTICULARS OF THE NATIONAL FINANCIAL OMBUD SCHEME**

If you are not satisfied with the outcome of the insurer's internal dispute resolution processes, or if their feedback provided to you is not in your favour, then you may submit a complaint to the National Financial Ombud Scheme at:

Physical Address (Johannesburg): 110 Oxford Rd, Houghton Estate, Johannesburg, Gauteng, 2198
Physical Address (Cape Town): Claremont Central Building, 6th Floor, 6 Vineyard Road, Claremont, Western Province,7700
Email Address: info@nfosa.co.za
Telephone Number: 0860-800-900

**7. PARTICULARS OF THE FINANCIAL SECTOR CONDUCT AUTHORITY**

The market conduct regulator of financial institutions that provide financial products and financial services.

P O Box 35655, Menlo Park, 0102
Telephone: 012 428 8000
Toll Free: 0800 203 722
Facsimile: 012 346 6941
E-Mail: enquiries@fsca.co.za
Website: www.fsca.co.za

**8. PARTICULARS OF FAIS OMBUD**

If you are not satisfied with the way the product was sold to you or the disclosures that were made to you, as contemplated in the Financial Advisory and Intermediary Services Act, 37 of 2002 as amended, you may submit your complaint in writing to the FAIS ombud at:

Physical Address: 125 Dallas Avenue Menlyn Central, Waterkloof Glen, Pretoria, 0010
Postal Address: P O Box 41, Menlyn Park, 0063
Telephone Number: 012 762 5000
Sharecall: 086 066 3274
Email: info@faisombud.co.za